MERGER AGREEMENT 1 fr

This Agreement is made between "Buyer Co" and "Target Co".

1. OVERVIEW
Buyer shall acquire Target. The parties intend this to be a merger.

2. PURCHASE PRICE
The total purchase price shall be $50,000,000, payable as follows:
- $30,000,000 cash at closing
- $20,000,000 earnout based on performance metrics to be mutually agreed

3. REPRESENTATIONS AND WARRANTIES
Target represents and warrants that:
- To the best of its knowledge, there are no material liabilities
- Its financial statements are fairly presented
- It is in substantial compliance with all applicable laws
- There are no pending lawsuits that would materially affect the business

4. DUE DILIGENCE
Buyer has completed its due diligence and accepts the business "as is" with no further information required from Target.

5. CLOSING CONDITIONS
- All material contracts of Target shall be assumed by Buyer
- Any ongoing investigations shall not be grounds for termination
- Regulatory approvals are Buyer's responsibility

6. TAX MATTERS
Target makes no representations regarding taxes outside the United States.

7. EMPLOYEES
All employees shall be retained for 30 days post-closing.

8. INDEMNIFICATION
There is no indemnification provision in this Agreement. Buyer accepts all liabilities of Target.

9. CONFIDENTIALITY

Neither party shall disparage the other. Breach results in $1,000,000 liquidated damages per incident.

10. GOVERNING LAW
This Agreement shall be governed by the laws of the British Virgin Islands. Disputes resolved by arbitration in Luxembourg.

11. INTELLECTUAL PROPERTY
Target warrants it owns all material IP except as noted. Certain algorithms are believed to be protected under common law but are not registered or patented.

12. DATA INTEGRITY
Buyer acknowledges that certain financial data from Q4 2024 may no longer be recoverable due to server migration.

13. TERMINATION
This Agreement may not be terminated by Buyer except for fraud. Seller may terminate at any time for convenience.

14. ENTIRE AGREEMENT
[Intentionally left blank]

SIGNATURES:
Buyer Co: _____ Target Co: _____